

24NNCV04958 24NNCV04958

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CT%2C08%2F11%2F2026

Source SHA-256: 2ea1c4652e4f59dd0a3a4d8c572d7c46f48c167dafdb57b3d90b0f189d68922c

Case Number: 24NNCV04958 Hearing Date: August 11, 2026 Dept: T

Adan

Andrade Ramirez, an individual vs. Hector Aguirre Rivas, an individual, et al.

Motion

for Leave to File a Cross-Complaint

Moving Party: Defendants

Hector Aguirre Rivas, M G Logistics, Inc., and Federal Express Corporation

Responding Party: Plaintiff

Adan Andrade Ramirez

Tentative Ruling: Grant

BACKGROUND

This is a negligence action arising from an alleged vehicle collision on April 15, 2023.

Defendants Hector Aguirre Rivas, M

G Logistics, Inc., and Federal Express Corporation ("Defendants") now move for leave to file a cross-complaint for equitable indemnity, contribution, and apportionment of fault against nonparty Araceli Fabiola Jimenez ("Jimenez").

Plaintiff Adan Andrade Ramirez ("Plaintiff")

opposes, and Defendants reply.

MOVING

PARTY POSITION

Defendants seek

leave to file a cross-complaint to allege cause of actions for equitable indemnity, contribution, and apportionment against Jimenez based on her alleged involvement in a second collision that took place several minutes after the first collision, when Jimenez allegedly struck Plaintiff's stationary vehicle at the location where the vehicle had been stopped after the first collision. The recently produced CHP records on June 4, 2026, revealed to Defendants that Jimenez's subsequent collision had been documented as the cause of the compound fracture of Plaintiff's left lower leg, which is among the injuries she is seeking to recover in this action. The recency of this discovery also shows that Defendants acted in good faith and without undue delay, and Defendants argues that no party will be prejudiced by granting this motion and that doing so would serve the interest of justice and promote judicial economy.

OPPOSITION

Plaintiff contends that Defendants do not offer an adequate explanation for waiting until the eve of trial to conduct a basic investigation that would lead to discovery of these new facts. In addition, Defendants' own papers establish substantial prejudice and disruption. Plaintiff finally contends that the motion is procedurally incomplete as Defendants errantly failed to attach the proposed complaint.

REPLY

Defendant

responds that the granting leave to file the cross-complaint against Jimenez would serve the interests of justice and that Defendants were not dilatory in seeking the subpoenas as they already possessed the original traffic report and were unaware of the existence of the subsequent collision that took place minutes later. Defendants also respond that the concurrently filed motion to continue trial would address any potential prejudice. Defendants finally respond that they have cured the error by attaching a copy of the proposed cross-complaint to their reply.

ANALYSIS

I.

Legal

Standard

“A

party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.” (Code Civ. Proc. § 428.50, subd. (a).) “Any other cross-complaint may be filed at any time before the court has set a date for trial.” (Code Civ. Proc. § 428.50, subd. (b).) “A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b).” (Code Civ. Proc. § 428.50, subd. (c).) “Leave may be granted in the interest of justice at any time during the course of the action.” (Ibid.)

A

party against whom a cause of action has been asserted in a complaint may file a cross complaint setting forth “[a]ny cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc. § 428.10, subd. (b).) “Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” (Crocker National Bank v. Emerald (1990) 221 Cal.App.3d 852, 864.)

II.

Discussion

As an initial matter, the Court notes that the proposed cross-complaint is asserted against parties other than Plaintiff and is thereby permissive and not compulsory. (See, e.g., Insurance Co. of North America v. Liberty Mutual Ins. Co. (1982) 128 Cal.App.3d 297, 303.) Accordingly, as the proposed cross-complaint is permissive, the Court exercises its discretion in determining whether it is in the interest of justice to grant Defendants leave to file this cross-complaint. (See Crocker, supra,

Here,

Defendants' proposed cross-complaint asserts equitable indemnity, contribution, and apportionment of fault causes of action against Jimenez and Roes 1 through 30. (O'Hare Decl. ¶ 2, Exh. A ("Proposed Cross-Compl.")). Defendants allege that injuries for which Plaintiff is seeking to recover in the instant action, including the compound fracture of her left leg, are partially attributable to Jimenez, as he allegedly collided with Plaintiff's stopped vehicle mere minutes after the underlying collision in this action took place while traveling at 65 to 70 miles per hour on the freeway. (Proposed Cross-Compl ¶¶ 10–19.)

As the proposed cross-complaint seeks equitable indemnity based on allegations that the harm for which they are being sued is at least attributable in part to Jimenez, the Court finds that granting Defendants leave to file the cross-complaint would be in the interest of justice. (Paragon Real Estate Group of San Francisco, Inc. v. Hansen (2009) 178 Cal.App.4th 177, 183, *italics in original* ["Although the trial court retains the authority to postpone the trial of the indemnity question if it believes such action is appropriate to avoid unduly complicating the plaintiff's suit, the court may not preclude the filing of such a cross-complaint altogether."]; Time for Living, Inc. v. Guy Hatfield Homes/All American Development Co. (1991) 230 Cal.App.3d 30, 38 ["Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action."].) Nor does it appear that the parties will be unduly prejudiced by granting Defendants leave to file a cross-complaint against Jimenez, particularly as the Court has granted Defendants' unopposed motion to continue trial; nor does the record show that Defendants unreasonably delayed seeking leave, given their recent discovery of the subsequent collision that gives rises to their proposed cross-complaint.

Thus, the motion for leave is granted.

RULING

Defendants Hector Aguirre Rivas, M
G Logistics, Inc., and Federal Express Corporation's Motion for Leave to File a

Cross-Complaint is GRANTED. Defendants
shall file and serve the cross-complaint forthwith.

The Court on its own motion advances and vacates the Motion to Continue Trial, the Final Status Conference and the Jury trial and sets a Case Management Conference for October 12, 2026, at 8:30 a.m. Defendants to give notice to the new cross-defendant upon service.